

That Act merely provided a new statutory remedy, neither legal nor equitable, but available in the areas of both equity and law. When declaratory relief is sought, the right to trial by jury depends upon the basic context in which the issues are presented. See Moore's Federal Practice (2d ed.) §§ 38.29, 57.30; Borchard, *Declaratory Judgments* (2d ed.), 399-404. If the basic issues in an action for declaratory relief are of a kind traditionally cognizable in equity, *e. g.*, a suit for cancellation of a written instrument, the declaratory judgment is not a "remedy at law."⁵ If, on the other hand, the issues arise in a context traditionally cognizable at common law, the right to a jury trial of course remains unimpaired, even though the only relief demanded is a declaratory judgment.⁶

Thus, if in this case the complaint had asked merely for a judgment declaring that the plaintiff's specified manner of business dealings with distributors and other exhibitors did not render it liable to Beacon under the anti-trust laws, this would have been simply a "juxtaposition of parties" case in which Beacon could have demanded a jury trial.⁷ But the complaint in the present case, as the Court recognizes, presented issues of exclusively equitable cognizance, going well beyond a mere defense to any subsequent action at law. Fox sought from the court protection against Beacon's allegedly unlawful interference with its business relationships—protection which this

⁵ *State Farm Mut. Auto. Ins. Co. v. Mossey*, 195 F. 2d 56; *Connecticut General Life Ins. Co. v. Candimat Co.*, 83 F. Supp. 1.

⁶ *Dickinson v. General Accident F. & L. Assur. Corp.*, 147 F. 2d 396; *Hargrove v. American Cent. Ins. Co.*, 125 F. 2d 225; *Pacific Indemnity Co. v. McDonald*, 107 F. 2d 446.

⁷ Moore's Federal Practice (2d ed.) § 57.31 [2]. "Transposition of parties" would perhaps be a more accurate description. A typical such case is one in which a plaintiff uses the declaratory judgment procedure to seek a determination of nonliability to a legal claim asserted by the defendant. The defendant in such a case is, of course, entitled to a jury trial.